

MISC. PETITIONS

IN RE: DELLARAGIONE

CASE NUMBER: 25PB-0033189

This matter is on calendar for further proceedings regarding status of the 850 Petition, Fiduciary, and status of case. The Court notes the 850 Petition does not appear to have been properly noticed. Proof of personal service of the Petition only has been filed for counsel for Ms. Middleton. As this is a Petition to recover property under Probate Code Section 850, mandatory form DE-115 is required to be used. 30 days notice is required. Notice is required to be personally served on the person in possession of the property. Additionally, no summons has been served on any party claiming an interest in, or having possession of, the property in question as required by Probate Code § 851. **An appearance is necessary on today's calendar.**

DENT VS. DENT

CASE NUMBER: 22EA-0200030

This matter is still pending and is trailing the Conservatorship of Dent and Dorman H. and Sharon E. Dent Revocable Trust matters. The Court notes that the Elder Abuse Temporary Restraining Order was denied pending hearing and is not presently in effect. At the last hearing on the related Trust matter, the Court was informed that Petitioner, Dorman Dent, has passed away. Considering Petitioner has now passed away, the Request for Elder Abuse Restraining Order is **DISMISSED. No appearance is necessary on today's calendar.**